

survive a motion to strike. (*Blegen v. Superior Court* (1981) 125 Cal.App.3d 959, 963 ["Pleading in the language of the statute is acceptable provided that sufficient facts are pleaded to support the allegations. [Citation omitted; emphasis added.] The terms themselves are conclusory, however." (Emphasis added.)) (See also *Lackner v. North, supra*, 135 Cal. App. 4th at 1210 ["Punitive damages are proper only when the tortious conduct rises to levels of extreme indifference to the plaintiff's rights, a level which decent citizens should not have to tolerate" (Emphasis added.)])

The FAC mentions punitive damages twice. Once in the prayer for relief section at the end of the FAC and once in paragraph 56 as an allegation for Plaintiff's second cause of action for Violation of FEHA. (FAC ¶56 and prayer for relief ¶ 5.)

The Court will allow the exemplary, treble and punitive damages allegation in FAC ¶ 1 and prayer for relief ¶ 5 since it encompasses the mandatory statutory damages provided by Civil Code section 52 subsection a as explained above.

FAC ¶ 56 is a threadbare conclusory allegation that is simply parroting the language of the statute. This is simply not enough for this punitive damages claim to survive a motion to strike. (See FAC ¶¶ 44-56.)

Conclusion

For the reasons analyzed above, the **Motion to Strike is granted in part and denied in part. The Motion to Strike is granted as paragraph 56 and denied as paragraphs 1, 42, and prayer for damages ¶ 5.**

9. 9:00 AM CASE NUMBER: C24-03057

CASE NAME: SIOUX EWY VS. CITY OF WALNUT CREEK

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: CITY OF WALNUT CREEK

TENTATIVE RULING:

Summary

On January 16, 2026, Defendant City of Walnut Creek's ("City") filed a Demurrer to Plaintiff Sioux Ewy's ("Plaintiff") complaint. In reviewing the moving papers and the Declaration of Counsel Diana S. Godwin, the Court finds that the City complied with the statutory requirement to meet and confer pursuant to Cal. Code of Civ. Proc § 430.41. The Court further finds that no timely opposition was filed and served by Plaintiff.

As such, the Demurrer is **sustained without leave to amend**. The Court will execute the proposed order lodged by the City dated January 16, 2026 and will request that the Clerk of the Court attach this tentative ruling to the proposed order. No appearance is required at the hearing on May 13, 2026.

10. 9:00 AM CASE NUMBER: C24-03180
CASE NAME: JESUS SANCHEZ VS. DENNIS RODRIGUEZ
HEARING ON SUMMARY MOTION FILED BY DEFT DENNIS RODRIGUEZ
FILED BY:

TENTATIVE RULING:

Before the Court is Defendant Dennis Rodriguez's Motion for Summary Judgment or, in the Alternative, Summary Adjudication. The Complaint alleges three causes of action against Defendant Rodriguez: (1) general negligence, (2) premises liability – negligence, and (3) premises liability – failure to warn [Civil Code section 846].

Defendant's Request for Judicial Notice is granted. (Evid. Code § 452 (d).)

For the following reasons, Defendants' Motion for Summary Judgment is **granted**.

Factual Background

This matter relates to injuries sustained by Plaintiff while performing work at real property owned by Defendant Rodriguez (the "Property"). Mr. Rodriguez hired non-moving Defendant Cornell Roofing Company, Inc. ("Cornell") to perform roofing work on the Property. (UMF 5.) On November 30, 2022, Plaintiff was performing work on the roof of the Property when he slipped and fell. (UMF 1.) At that time, Plaintiff was employed by Cornell and performing roofing work within the scope of his employment with Cornell. (UMF 7.) Cornell held a valid contractor's license. (UMF 6.) Plaintiff does not know what caused him to slip and fall. (UMF 2.)

Defendant Rodriguez was not Plaintiff's employer and had never met him prior to the incident. (UMF 8-10.) Mr. Rodriguez did not control the work Plaintiff was performing, nor did he direct Cornell in its work on the Property. (UMF 12-13.) Mr. Rodriguez was not responsible for Plaintiff's safety while performing work, did not provide tools to Plaintiff, and had no input as to how he performed his work or what safety measures were to be used. (UMF 11, 14-15.)

At the time of the accident, Cornell was directing and supervising Plaintiff's work. (UMF 16.) Plaintiff was being paid by Cornell for his work. (UMF 17.) Following the incident, Plaintiff filed a workers' compensation case. (UMF 18.)

Standard

Summary judgment is proper if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. (Code Civ. Proc. § 437c(c).) The "moving papers must demonstrate that 'material facts' are undisputed and that the movant is entitled to judgment as a matter of law. (*Id.* at (b)(1), (c).) "The moving party's papers are strictly construed whereas those of the opposing party are liberally construed, with all doubts about the granting of the motion resolved in favor of the opposing party." (*Y.K.A. Industries, Inc. v. Redevelopment Agency of City of San Jose* (2009) 174 Cal.App.4th 339, 352.)

The moving party "bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a

shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.” (*Id.* at 353 quoting *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850, italics in original.) Thus, a defendant moving for summary judgment “must make a prima facie showing, i.e., ‘he must present evidence that would require a reasonable trier of fact *not* to find any underlying material fact more likely than not—otherwise, *he* would not be entitled to judgment *as a matter of law*, but would have to present *his* evidence to a trier of fact.” (*Ibid.* quoting *Aguilar*, supra, 174 Cal.App.4th at 851.)

Analysis

As noted above, the Complaint asserts three causes of action against Defendant Rodriguez: (1) general negligence, (2) premises liability – negligence, and (3) premises liability – failure to warn [Civil Code section 846]. Defendant contends both negligence causes of action are barred by the so-call “Privette Doctrine.” It also contends the failure to warn cause of action fails under the facts of this case.

A. The Privette Doctrine Generally

In the context of premises liability and negligence claims by an employee of an independent contractor hired by an owner of the premises or general contractor on a development project, the *Privette* doctrine, set forth in *Privette v. Superior Court* (1993) 5 Cal.4th 689, 693, creates a presumption against imposing liability on the owner or general contractor for injuries to the independent contractor’s employee. (*Sandoval v. Qualcomm Incorporated* (2021) 12 Cal.5th 256, 264.) Under the *Privette* doctrine: “A person or entity hiring an independent contractor (a ‘hirer’) ordinarily delegates to that independent contractor all responsibility for the safety of the contractor’s workers.” (*Ibid.*) A hirer for purposes of the *Privette* doctrine includes a landowner. (*Toland v. Sunland Housing Group, Inc.* (1998) 18 Cal. 4th 253, 269–270 [hirer under *Privette* can be a landowner, general contractor, or any other entity that hires an independent contractor].)

The California Supreme Court later expounded on the doctrine in *SeaBright Ins. Co. v. US Airways, Inc.* (2011) 52 Cal.4th 590: “By hiring an independent contractor, the hirer implicitly delegates to the contractor any tort law duty it owes *to the contractor’s employees* to ensure the safety of the specific workplace that is the subject of the contract.” (*Id.* at 594 [italics in original.]) As the Court stated in *Sandoval*: “Over time, we’ve recast our primary rationale for the *Privette* doctrine in terms of delegation rather than workers’ compensation. Because we typically expect contractors to perform the contracted work more safely than hirers, we have endorsed a ‘strong policy’ of presuming that a hirer delegates all control over the contracted work, and with it all concomitant tort duties, by entrusting work to a contractor. [Citation omitted.]” (*Sandoval*, supra, 12 Cal.5th at 270.)

Here, Cornell was hired by Rodriguez to perform roofing work at his Property. Cornell was a licensed contractor that employed Plaintiff and paid him for his work. Plaintiff’s injuries arose while he was performing work for, and working within the course and scope of his employment with, Cornell.

Accordingly, Plaintiff’s claims fall within the so-called *Privette* Doctrine and are presumptively barred unless Plaintiff can show they fall within an exception to the *Privette* Doctrine.

B. Exceptions to the Privette Doctrine

"[T]he *Privette* doctrine has its limits. Sometimes a hirer intends to delegate its responsibilities to the contractor in principle but, by withholding critical safety information, fails to effectively delegate its responsibilities in practice; or a hirer delegates its responsibilities only partially by retaining control of certain activities directly related to the contracted work." (*Sandoval*, supra, 12 Cal.5th at 271.) In those circumstances, the *Privette* presumption "gives way to the two recognized exceptions that apply where delegation is either ineffective or incomplete." (*Ibid.*) One exception is set forth in *Hooker v. Dept. of Transportation* (2002) 27 Cal.4th 198 and arises based on the hirer's "retained control," and the other in *Kinsman v. Unocal Corp.* (2005) 37 Cal.4th 659 applies to a landowner-hirer when there is a concealed dangerous condition on the property. (*Ibid.*)

1. The *Hooker/McKown* Exception

The cases *Hooker v. Dept. of Transportation* (2002) 27 Cal.4th 198 and *McKown v. Wal-Mart, Inc.* (2002) 27 Cal.4th 219 were decided essentially as companion cases. (*McKown*, supra, 27 Cal.4th at 222.) The Court in *McKown* summarized the holdings of the two decisions and the extension of the *Hooker* exception to equipment provided by the hirer:

In *Hooker v. Department of Transportation* (2002) 27 Cal. 4th 198 (*Hooker*), a companion to this case, we held that a hirer of an independent contractor is not liable to an employee of the contractor ***merely because the hirer retained control over safety conditions at a worksite***, but that a hirer is liable to an employee of a contractor ***insofar as a hirer's exercise of retained control affirmatively contributed to the employee's injuries***. In this case, we hold that a hirer is liable to an employee of an independent contractor insofar as ***the hirer's provision of unsafe equipment affirmatively contributes to the employee's injury***.

(*Id.* at 222 emphasis added.)

To meet the *Hooker/McKown* exception, Plaintiff must put forth evidence that Rodriguez retained control and its retained control affirmatively contributed to his injuries. (*Sandoval*, supra, 12 Cal.5th at 278.) "A hirer's mere authority to prevent or correct a contractor's unsafe practices (retained control) does not, without more, limit the contractor's delegated control over the work. But to the extent that the hirer exerts influence over the contracted work such that the contractor is not entirely free to perform the work in the contractor's own manner (actual exercise), the hirer does limit the contractor's delegated control." (*Ibid.*) The Court in *Sandoval* explained that "retained control" under the *Hooker* exception is not general control over the property or project but means that the hirer "retains a sufficient degree of authority over the manner of performance of the work entrusted to the contractor. (Emphasis added.)" (*Id.* at 274-276 [citing authorities rejecting general control over the premises as retained control to support hirer liability to employees of subcontractors].)

Actual exercise of the retained control "requires that the hirer in fact 'involve itself, such as through direction, participation, or induced reliance. [Citation omitted.]" (*Sandoval*, supra, 12 Cal.5th at 276.) "[T]he affirmative contribution requirement can be satisfied ***only if*** the hirer in some respect induced – not just failed to prevent – the contractor's injury-causing conduct." (*Id.* at 277 citing examples.) Active participation is sufficient but "is not necessarily the only way" this requirement can be met. (*Id.*

at 276, fn. 6.) The Court also explained that “neither ‘actual exercise’ nor ‘affirmative contribution’ requires that the hirer’s *negligence* (if any) consist of an affirmative act.” (*Id.* at 277.) The theory underlying the *Hooker* exception is that the delegation of tort duties to the independent contractor is “partial” or “incomplete” because the hirer retains control over some aspect of the work. (*Id.* at 271.)

Plaintiff was injured when he slipped and fell while performing roofing work at the Property. There is no evidence that Mr. Rodriguez contributed to Plaintiff’s injuries. It is undisputed that Cornell was supervising and directing Plaintiff’s work at the time of the incident. Mr. Rodriguez did not have any control over the safety measures Cornell implemented. Nor did Mr. Rodriguez retain control over Plaintiff’s work, provide him tools, or even meet Plaintiff prior to the incident. In other words, there is no evidence that Mr. Rodriguez ‘retained control over safety conditions at the worksite,’ much less that any actions by Mr. Rodriguez “affirmatively contributed to” Plaintiff’s injuries.

Plaintiff has failed to provide any evidence that this exception to the *Privette* Doctrine applied.

2. The Kinsman Exception

Under the *Kinsman* exception which applies when the hirer is also the landowner, the landowner-hirer may owe tort duties to the employee of a subcontractor if the owner-hirer fails to disclose to the contractor a concealed hazard on the property. (*Sandoval, supra*, 12 Cal.5th at 271-272.) Under the *Kinsman* exception, “a landowner who hires an independent contractor may be liable if the landowner knew, or should have known, of a concealed hazard on the property that the contractor did not know of and could not have reasonably discovered, and the landowner failed to warn the contractor of the hazard.” (*Gonzalez v. Mathis* (2021) 12 Cal.5th 29, 38 [citing *Kinsman, supra*, 37 Cal.4th at 664].)

For purposes of *Kinsman*, a “concealed hazard” can be one where the existence of the hazard is concealed, or where the hazard “is in some way apparent but whose dangerousness is concealed. [Citation omitted.]” (*Sandoval, supra*, 12 Cal.5th at 272.) The concealed hazard under the *Kinsman* exception must be “a hazard that the hirer either knows or reasonably should know exists, and that the contractor does not know exists and could not reasonably discover without the hirer’s disclosure. [Citation omitted.]” (*Ibid.*) As the Court recently explained its holding in *Kinsman*: “We based our holding on the premises liability rule that a landowner has a duty to warn a visitor of a dangerous condition on the property ‘[s]o that [the visitor], like the host, will be in a position to take special precautions when [the visitor] comes in contact with it.’” [Citations, internal quotation marks omitted.]” (*Gonzalez, supra*, 12 Cal.5th at 43.)

Initially, it is worth noting that there are no allegations in the complaint that a concealed hazard existed on the Property and that such a hazard caused and or contributed to Plaintiff’s injuries. “It is well established that the pleadings determine the scope of relevant issues on a summary judgment motion.” (*Nieto v. Blue Shield of California Life & Health Ins. Co.* (2010) 181 Cal.App.4th 60, 74.) Summary [adjudication] cannot be granted nor denied on a ground not raised by the pleadings. (*Bostrom v. County of San Bernardino* (1995) 35 Cal.App.4th 1654, 1663.)

In addition, there is no evidence to support a finding that there was a concealed hazard that Defendant was aware of and did not disclose. Plaintiff admits that he does not know what caused him to slip and fall. (UMF 2.) Without knowing the cause, Plaintiff has failed to provide evidence that can

establish that (1) there was some hazard on the roof that (2) Defendant was aware of and (3) Plaintiff could not have reasonably discovered, and (4) Defendant failed to disclose.

Plaintiff has failed to provide any evidence that this exception to the *Privette* Doctrine applied.

The above analysis applies to Plaintiff's general negligence and premises liability – negligence causes of action.

C. Willful Failure to Warn – Civil Code § 846

Plaintiff's Complaint also includes a claim under Civil Code section 846, which states, in pertinent part:

"An owner of any estate or any other interest in real property, whether possessory or nonpossessory, owes no duty of care to keep the premises safe for entry or use by others **for any recreational purpose** or to give any warning of hazardous conditions, uses of, structures, or activities on those premises to persons entering **for a recreational purpose**, except as provided in this section." (Civ. Code § 846 (a) emphasis added.)

This statute does not apply to claims by a person that was hired to perform work on a person's property or structures located thereon. The allegations of the Complaint are clear that Plaintiff was not on the Property for 'recreational purposes,' but instead as part of his job working for Cornell. Plaintiff also fails to provide any evidence to support this cause of action.

Evidentiary Issues

Plaintiff's Objections 1-5: Overruled.

Conclusion

Based on the above, Defendant's Motion for Summary Judgment is **granted**.

11. 9:00 AM CASE NUMBER: C25-00790
CASE NAME: ANGEL VILLAFAN VS. ONPOINT INDUSTRIAL SERVICES, LLC
HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO JASON D. FRIEDMAN
FILED BY: ONPOINT INDUSTRIAL SERVICES, LLC

TENTATIVE RULING:

Summary

Defendant Onpoint Industrial Services, LLC ("Defendant") filed a Notice of Hearing on Verified Application for Admission *Pro Hac Vice* filed by Jason D. Friedman, Esq. The Motion is **granted**. No appearance is required on May 13, 2026.

Background

On November 14, 2025, Defendant filed Notice of Hearing, through Counsel Constangy Brooks, Et. Al., and the Verified Application for Admission of Jason D. Friedman to the Bar of this Court *Pro Hac Vice* ("Motion"). The Motion was supported by the Verified Application of Jason D. Friedman, and the Declaration of Counsel Kenneth D. Sulzer. The Proof of Service shows that service was accomplished via electronic service on November 14, 2025. The Court did not receive timely oppositions to this